

Santosh Pandey Son Of Late Sh. Jai ... vs State Of Haryana on 8 March, 2010

Criminal Misc. No. M-6750 of 2010

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IN THE HIGH COURT OF PUNJAB AND HARYANA AT
CHANDIGARH

Criminal Misc. No. M-6750 of 2010
Date of Decision: 08.03.2010

1. Santosh Pandey son of Late Sh. Jai Parkash;
2. Smt. Bindevasini Devi, wd/o late Sh. Jai Parkash;
both residents of village Kidarganj, District Navada,
Bihar.
3. Vijay Pandey son of Sh. Jai Parkash;
4. Smt. Mala Devi wife of Sh. Vijay Pandey;
both residents of near Chini Mill Buxar, Post Office
Gajadhar Ganj, Buxar, Bihar.

... Petitioners

Versus

1. State of Haryana.
2. Smt. Babita, d/o Sh. Ganesh Mishra, r/o Gali No. 25,
Surya Nagar, Hisar.

... Respondents

CORAM: HON'BLE MR. JUSTICE SHAM SUNDER

Present: Mr. Ashwani Gaur, Advocate,
for the petitioners.

SHAM SUNDER, J.

This petition under Section 482 Cr.P.C., for quashing the complaint, bearing Criminal Case No. 1067-1 of 03.09.08, under Sections 120-B, 307, 323, 406, 498-A, 506 and 511 IPC (Annexure P1), pending in the Court of Judicial Magistrate 1st Class, Hisar, the summoning order dated 31.10.09 (Annexure P2), and, all the subsequent proceedings, arising out of the same, has been filed by the petitioners.

2. The facts, in brief, are that, the marriage of Babita, complainant/respondent No. 2, was solemnized with Santosh Pandey, petitioner No. 1, on 28.01.07, as per Hindu rites and ceremonies. The father of the complainant, spent more than Rs. 5 lacs, on her marriage. Sufficient articles of dowry, were entrusted, to the petitioners, at the time of marriage. However, on the next day of marriage, the petitioners alongwith their co-petitioners (non-applicants), started teasing and harassing the complainant, both physically and mentally, for bringing less dowry. They pressurized the complainant, to bring more dowry, from her parents, but, when she showed inability of her father, she was given severe beatings. It was stated that, even on 08.03.07, the petitioners alongwith their co- petitioners (non-applicants), conspired to kill the complainant, by setting her ablaze, but, she somehow managed to escape and reached the house of one Dalip Viswakarma, a friend of her father, who informed her parents about the same. It was further stated that Panchayat, was convened, by the father of the complainant, with a view to rehabilitate his daughter, but, the petitioners and their co- petitioners (non-applicants), were adamant, not to do so, until more dowry was given. It was further stated that even, on 06.05.07, the petitioners and their co-petitioners (non-applicants), visited the house of the parents of the complainant and threatened to kill them. Ultimately, left with no alternative, a criminal complaint was filed.

3. After recording the preliminary evidence, and, on going through the record of the case, the trial Court, summoned the petitioners, as accused, for the offences, punishable under Sections 406, 498-A and 506 IPC.

4. Feeling aggrieved, the instant petition, has been filed, by the petitioners.

5. I have heard the Counsel for the petitioners, and, have gone through the documents, on record, carefully.

6. The Counsel for the petitioners, submitted that the complaint and the summoning order, are nothing but a sheer abuse of the process of the Court, and filed, just as a counter-blast, to the petition, dated 02.04.07, under Section 12 of the Hindu Marriage Act, filed by petitioner No. 1, for dissolution of the marriage, on the ground of fraud, having been played by respondent No. 2, and his family members, in the Family Court at Navada, Bihar. He further submitted that respondent No. 2, even went to the extent of saying, that petitioner No. 1, was having illicit relations with his sister-in-law elder brother's wife i.e. petitioner No. 4. He further submitted that, the Court, at Hisar, had no jurisdiction, to entertain the complaint. He further submitted that, if the complaint and the summoning order, were allowed to continue, grave injustice, would be caused, to the petitioners.

7. After giving my thoughtful consideration, to the contentions, raised by the Counsel for the petitioners, in my considered opinion, the petition, is liable to be dismissed, for the reasons, to be recorded, hereinafter. At the time of deciding the petition, under Section 482 Cr.P.C., the Court, is not required to go into the probable defence of the accused. At that time, the Court, is only required, to take consideration, as to whether, the allegations, contained in the complaint, were sufficient, to constitute the offences, or not. The complainant, is a permanent resident of Hisar, for the last 20/25 years. The marriage of the complainant/respondent No. 2, was performed, on 28.01.07, with Santosh Pandey, petitioner No. 1, as per Hindu rites and ceremonies at Hisar. The articles of dowry,

were entrusted, at Hisar, saying that, it was the 'istri dhan'. It is further evident, from the allegations, contained in the complaint, that the complainant, was subjected to cruelty, in connection with the demand of more dowry. Further allegation, are to the effect, that Santosh Pandey, petitioner No. 1, her husband, demanded car, while he was given the motor-cycle, in the dowry, by the father of the complainant. Even, it is evident, from the allegations, contained in the complaint, that the petitioners, did not provide food, to the complainant. From the allegations, contained in the complaint, it is also evident, that the petitioners alongwith their co-petitioners (non-applicants), conspired to kill the complainant, in the mid-night and tried to set her ablaze, but somehow or the other, she reached the house of one Dalip Viswakarma, who was a friend of her father, by saving herself, and, narrating him the whole occurrence, who informed the family of the complainant. The allegations, contained in the complaint, duly supported by the preliminary evidence, were, thus, sufficient to proceed against the accused. At the time of summoning the accused, the Court was only required to see whether there were sufficient grounds for proceeding against them. Any probable defence of the accused, with regard to the filing of petition, under Section 12 of the Hindu Marriage Act, by the husband of the complainant, could be taken into consideration, by the trial Court, during the course of trial. The complaint and the summoning order, therefore, could not be said to be, in any way, abuse of the process of Court. The petitioners, are the husband, mother-in-law, brother-in-law and sister-in-law of the complainant. The complaint and the summoning order, as also the subsequent proceedings, arising out of the same, are not liable to be quashed.

8. For the reasons recorded above, Criminal Misc. No. M-6750 of 2010, being devoid of merit, must fail, and the same stands dismissed. Any observation, made in this order, shall not be taken, as an expression of mind, on merits of the case.

9. Registry is directed, to comply with the order, by sending the copies thereof, to the Courts concerned, immediately.

08.03.2010
Amodh

(SHAM SUNDER)
JUDGE